LANXTOR

E1 Data Processing Agreement

Version of November 12, 2026 · Lanxtor Inc., 7545 Irvine Center Drive, Suite 200, Irvine, California 92618, USA
Always available at https://www.lanxtor.com/dpa.html

PART A. THE AGREEMENT

1. About this agreement

This E1 Data Processing Agreement (the "DPA") is between Lanxtor Inc., 7545 Irvine Center Drive, Suite 200, Irvine, California 92618, USA ("Lanxtor"), and the customer that has accepted the E1 Terms and License Agreement at https://www.lanxtor.com/e1-terms.html (the "Agreement") ("Customer"). It forms part of the Agreement and applies whenever Lanxtor processes Customer Personal Data in providing E1 Cloud, E1 Reviewer for iPad connected to E1 Cloud, support or Professional Services.

The Customer accepts this DPA by accepting the Agreement; no signature is needed. If the Customer wants a signed copy, Lanxtor signs this text on request to privacy@lanxtor.com. A DPA the parties sign with other terms replaces this one for that Customer.

In a conflict on the protection of personal data, this DPA prevails over the Agreement, and the Standard Contractual Clauses (section 12) prevail over this DPA. Otherwise the Agreement applies, including its limitations of liability.

This DPA does not apply to an Installation in the Customer's own cloud or on its own servers where Lanxtor has no access to the Customer Data, nor to the desktop app with its own store on the Customer's devices: there the Customer processes the data itself. It applies to Lanxtor's access in support of such an Installation when the Customer gives that access.

2. Definitions

Terms defined in the Agreement have the same meaning here. In addition:

- "Data Protection Law" means every law on the protection of personal data that applies to the processing under this DPA, in particular the EU General Data Protection Regulation 2016/679 ("GDPR"), the GDPR as it applies in the United Kingdom ("UK GDPR") with the Data Protection Act 2018, the Swiss Federal Act on Data Protection ("FADP"), and the laws of the member states that supplement them.
- "Customer Personal Data" means personal data in the Customer Data, and personal data about the Customer's Users that Lanxtor processes to provide E1 for the Customer, as described in Annex I.
- "controller", "processor", "data subject", "personal data", "processing", "personal data breach" and "supervisory authority" have the meaning the GDPR gives them.
- "Sub-processor" means a third party Lanxtor engages that processes Customer Personal Data, including Lanxtor's Affiliates and the AI Providers that process Input and Output.
- "Standard Contractual Clauses" or "SCCs" means the standard contractual clauses for the transfer of personal data to third countries adopted by the European Commission in Implementing Decision (EU) 2021/914, and, for the United Kingdom, the International Data Transfer Addendum issued by the Information Commissioner ("UK Addendum").

3. Roles of the parties

For Customer Personal Data the Customer is the controller, or a processor acting for its own customers, and Lanxtor is its processor, or sub-processor. The Customer is responsible for having a legal basis for the processing and for the instructions it gives, and confirms that its instructions comply with Data Protection Law.

Lanxtor is a controller, not a processor, for the personal data it processes for its own purposes: to manage the customer relationship, accounts and sign-in security, billing, the website, and to meet its legal obligations. Its privacy notice at lanxtor.com/privacy.html describes that processing.

E1 is not designed for special categories of personal data (Article 9 GDPR) or data on criminal convictions (Article 10 GDPR). The Customer does not put such data into E1 unless the parties have agreed in writing on the additional measures it needs.

4. Processing only on the Customer's instructions

Lanxtor processes Customer Personal Data only on the Customer's documented instructions, including for transfers to third countries, unless the law of the European Union or of a member state to which Lanxtor is subject requires otherwise; in that case Lanxtor tells the Customer of that requirement before processing, unless that law prohibits it.

The Customer's instructions are the Agreement, this DPA, the settings the Customer and its Administrators choose in E1 (for example the organization's policies, the AI Features it turns on, and whom it gives access), and further written instructions that the parties agree. An instruction beyond the scope of the Agreement may be a Professional Service.

Lanxtor tells the Customer without delay if, in its opinion, an instruction infringes Data Protection Law, and may suspend that instruction until the Customer confirms or changes it.

Lanxtor does not sell Customer Personal Data, does not use it for advertising or profiling, and does not use the Customer Data, Input or Output to train or improve AI models, its own or third parties' (Agreement, sections 19, 27 and 29).

5. Confidentiality

Lanxtor ensures that every person it authorizes to process Customer Personal Data is bound to confidentiality, by contract or by law, and processes it only as needed for their tasks.

Lanxtor's staff have no standing access to Customer Data in E1 Cloud. To help the Customer they ask for E1 support access, which an Owner or Administrator of the Customer approves in E1 for a stated purpose and a limited time; it is read-only unless the Customer allows changes, labelled "E1 support" in the Customer's history and audit log, and the Customer can end it at any time. Emergency access to keep the service running is limited to what the emergency needs and is reported to the Customer.

6. Security of processing

Lanxtor implements and maintains the technical and organizational measures in Annex II, appropriate to the risk, taking into account the state of the art, the costs of implementation and the nature, scope, context and purposes of the processing (Article 32 GDPR).

Lanxtor may update the measures as technology and risks change, provided that the overall level of protection does not decrease.

The Customer is responsible for the security of its own systems and of the access it gives: its Users' sign-in, the roles it assigns, the devices that use E1, and the data it chooses to share outside E1.

7. Sub-processors: authorization

The Customer gives Lanxtor a general authorization to engage Sub-processors. The Sub-processors engaged when this version of the DPA took effect are those in Annex III; the current list is always at https://www.lanxtor.com/sub-processors.html, with each Sub-processor's service, purpose, the personal data it processes, and where.

Lanxtor engages each Sub-processor under a written contract that imposes on it data protection obligations that are no less protective than those in this DPA, in particular to give sufficient guarantees of appropriate technical and organizational measures. Lanxtor remains fully liable to the Customer for the performance of each Sub-processor's obligations.

8. Sub-processors: changes and objections

Lanxtor tells the Customer of any intended addition or replacement of a Sub-processor at least 30 days before the new Sub-processor processes Customer Personal Data, by email to the Customer's Owners and Administrators and as a notice in E1, and updates the list at https://www.lanxtor.com/sub-processors.html. The notice names the Sub-processor, its service and where it processes the data.

Where an urgent change is needed to keep E1 Cloud secure or running (for example when a Sub-processor stops its service), the notice period may be shorter; Lanxtor then tells the Customer as soon as possible and explains why.

The Customer may object to a new Sub-processor on reasonable grounds relating to data protection, in writing to privacy@lanxtor.com within the notice period. The parties then discuss in good faith how to address the

objection, for example by not using that Sub-processor for the Customer's data or by additional measures. If they cannot agree within 30 days, the Customer may terminate the affected Subscription by written notice before the change takes effect, and Lanxtor refunds the fees prepaid for the period after the termination. This is the Customer's only remedy for an objection.

A change of the AI model that keeps the same Sub-processor and the same location is not a change of Sub-processor.

9. Requests of data subjects

Taking into account the nature of the processing, Lanxtor assists the Customer by appropriate technical and organizational measures, as far as possible, in responding to requests of data subjects to exercise their rights under Chapter III of the GDPR (access, rectification, erasure, restriction, portability, objection).

E1 lets the Customer do this itself: Administrators see and change members' names and roles, remove members, export the organization's data, see the access history, and set how names are shown in history. Where these are not enough, Lanxtor helps on request.

If a data subject sends a request to Lanxtor about Customer Personal Data, Lanxtor forwards it to the Customer without undue delay and does not answer it itself, except to tell the data subject to contact the Customer.

10. Personal data breaches

Lanxtor tells the Customer without undue delay, and in any case within 48 hours, after becoming aware of a personal data breach affecting Customer Personal Data, by email to the Customer's Owners and Administrators (and its data protection contact, if the Customer named one).

The notice describes, as far as then known and in phases as more becomes known: the nature of the breach, the categories and approximate number of data subjects and records concerned, the likely consequences, the measures taken or proposed to address it and limit its effects, and a contact for more information.

Lanxtor takes reasonable steps to contain and investigate the breach and to prevent a recurrence, and assists the Customer in meeting its obligations to notify the supervisory authority and the data subjects (Articles 33 and 34 GDPR). A notice is not an admission of fault.

11. Other assistance

Taking into account the nature of the processing and the information available to it, Lanxtor assists the Customer in ensuring compliance with its obligations on security (Article 32 GDPR), data protection impact assessments (Article 35) and prior consultation of the supervisory authority (Article 36), in particular by this DPA, the E1 Cloud specifications, the Trust and Security information and the answers to security questionnaires.

Lanxtor makes available to the Customer all information necessary to demonstrate compliance with Article 28 GDPR, as described in section 13.

12. Transfers out of Europe

Customer Data in E1 Cloud is stored in the region in the European Union stated in the E1 Cloud specifications. Customer Personal Data is processed outside the European Economic Area, the United Kingdom or Switzerland only as described in this DPA and in Annex III: by Lanxtor's own staff, who work for Lanxtor Inc. in the United States, when they give support with E1 support access (section 5) or keep the service running, and by the Sub-processors whose location Annex III shows outside Europe.

Such transfers are made only with a safeguard Data Protection Law recognizes: an adequacy decision (for example for a recipient certified under the EU-U.S. Data Privacy Framework, where Lanxtor or the Sub-processor is certified), or the Standard Contractual Clauses.

To the extent a transfer from the Customer to Lanxtor needs it, the parties hereby enter into the Standard Contractual Clauses, Module Two (controller to processor), or Module Three (processor to processor) where the Customer is a processor, which are incorporated into this DPA by reference, with these choices: in clause 7 the docking clause applies; in clause 9 option 2 (general authorization), with the notice period of section 8; in clause 11 the optional language does not apply; in clauses 17 and 18 the law and the courts of Ireland; Annexes I to III of the SCCs are Annexes I to III of this DPA. For transfers from the United Kingdom the UK Addendum applies with the same information, and for transfers from Switzerland the SCCs apply with the FADP in place of the GDPR and the Swiss Federal Data Protection and Information Commissioner as the competent supervisory authority.

Lanxtor engages Sub-processors outside Europe under the Standard Contractual Clauses, Module Three, or another valid safeguard, and has assessed, as clause 14 of the SCCs requires, that the laws of the destination do not prevent them from meeting their obligations, taking into account the supplementary measures in Annex II (such as encryption in transit and at rest).

If Lanxtor receives a request of a public authority for Customer Personal Data, it tells the Customer unless the law prohibits it, challenges the request where there are reasonable grounds, and discloses only the minimum the request lawfully requires.

13. Information and audits

On request, Lanxtor gives the Customer the information necessary to demonstrate compliance with this DPA: this DPA and its annexes, the current list of Sub-processors, the summary of the latest independent penetration test, and its answers to a reasonable security questionnaire, once a year.

If that information is not sufficient to demonstrate compliance, or a supervisory authority requires it, or after a personal data breach, the Customer may audit Lanxtor's compliance, by itself or by an independent auditor bound to confidentiality who is not a competitor of Lanxtor: with at least 30 days' written notice, at most once in any 12 months (except after a breach or at a supervisory authority's request), during business hours, without access to other customers' data, and at the Customer's cost. The parties agree the scope beforehand. Audits of Sub-processors are made through the reports and certifications those providers publish.

14. Return and deletion

During the Subscription Term the Customer may export its Customer Data at any time (Agreement, section 21). After the Agreement or the last Subscription ends, the Customer may export it during the 30-day exit period; Lanxtor then deletes the Customer Personal Data from E1 Cloud within a further 60 days, and from backups when they expire on their normal cycle (Annex II), unless the law of the European Union or of a member state requires Lanxtor to keep it. Data kept in backups until then stays protected by this DPA and is not used.

On request, Lanxtor confirms the deletion in writing.

15. Term and changes

This DPA applies as long as Lanxtor processes Customer Personal Data for the Customer, and its obligations on deletion and confidentiality survive the end of the Agreement.

Lanxtor may update this DPA to reflect changes in Data Protection Law, a decision of a court or supervisory authority, or a change in E1 Cloud, provided the update does not reduce the protection of Customer Personal Data. Lanxtor tells the Customer of material changes at least 30 days before they take effect. The version in force is at https://www.lanxtor.com/dpa.html.

Data protection contact of Lanxtor: privacy@lanxtor.com, Lanxtor Inc., 7545 Irvine Center Drive, Suite 200, Irvine, California 92618, USA.

PART B. ANNEXES

Annex I. Description of the processing

Parties. Data exporter: the Customer, as identified in its order or its organization in E1, as controller (or processor); its contact is the Owner of its organization in E1. Data importer: Lanxtor Inc., 7545 Irvine Center Drive, Suite 200, Irvine, California 92618, USA, privacy@lanxtor.com, as processor (or sub-processor); activity: providing E1 Cloud and the related support and services under the Agreement.

Categories of data subjects:

- The Customer's Users: employees, contractors, students and guests the Customer gives access to E1, including people of other organizations on a project the Customer shares.
- People named in the Customer Data: for example the authors, checkers and approvers of documents and revisions, contact persons of vendors and clients, and people mentioned in comments, tasks, markups and files.

Categories of personal data:

- Identity and contact: name, email address, organization, job title or discipline where given, profile picture where given.

- Account and access: licenses, roles, group memberships, sign-in method, sign-in and session records (time, IP address, device and browser), passkeys' public keys (never their private keys), access tokens' metadata.
- Activity: the history of changes (who changed what and when), audit records, comments, tasks, approvals and signatures, presence on a drawing while it is open, and usage measurements where the person agreed to share them.
- Content: the projects, drawings, documents, files and messages the Customer puts into E1, which may contain personal data, and what Users ask the co-engineer (Alex) with its answers (Input and Output).
- Special categories: none intended (section 3).

Nature and purpose of the processing: hosting, storing, backing up, displaying, searching, transmitting, analysing on the Customer's instruction (including by the AI Features the Customer uses), exporting and deleting Customer Personal Data, in order to provide E1 Cloud, keep it secure and available, give support, and as the Customer otherwise instructs.

Frequency: continuous, for the Subscription Term.

Duration and retention: for the term of the Agreement and the exit and deletion periods after it (section 14). Within the term, the Customer decides what is kept, within the periods shown in E1 (for example the Bin and the history).

Competent supervisory authority: the supervisory authority of the member state in which the Customer is established or, where the Customer is not established in the European Union but the GDPR applies to it, that of the member state in which its representative is established, or, failing one, the Irish Data Protection Commission.

Annex II. Technical and organizational measures

Lanxtor maintains at least the following measures for E1 Cloud, described in more detail in the E1 Cloud specifications and the Trust and Security information:

- Encryption: TLS 1.2 or newer for all traffic, with HSTS, and certificate checks also between E1's services and its database; the database, files, backups, logs and secrets encrypted at rest with AES-256, with keys held in the cloud provider's key management service, never in code.
- Isolation of customers: every record carries its organization, and the database enforces it a second time by row-level security, so that one organization's queries cannot read another's data; tested in every build.
- Access control: roles and permissions per organization, project, section and object, maximum roles, and Owners' and Administrators' control over who may do what; every permission is checked on the server.
- Authentication: sign-in through an identity provider (no passwords kept by E1), passkeys, the organization's own single sign-on where it sets one up, a fresh confirmation for sensitive actions, and session limits.
- No standing staff access: Lanxtor staff reach Customer Data only through E1 support access the Customer approves, limited in time and recorded (section 5); administrative access to the infrastructure is limited to named staff with multi-factor sign-in and is logged.
- Logging and monitoring: audit records of sign-ins, access changes, exports and administrative actions, visible to the Customer's Administrators; monitoring of the service and alerts on failures and abuse; rate limits.
- Availability and recovery: continuous database backups with restore to any point in time of the last 7 days, copies in a second region within the EU, files kept with earlier versions and deleted files recoverable for 14 days, a recovery point target of 1 hour and a recovery time target of 8 hours; restores are tested.
- Secure development: every change reviewed and tested automatically before it is released, including the isolation and permission tests; dependency and secret scanning; signed release artifacts and a software bill of materials; an independent penetration test at least yearly and before major releases; vulnerabilities fixed within 7 days (critical), 30 days (high) or 90 days (medium) of confirmation; a published vulnerability disclosure policy.
- Data minimization and AI: the co-engineer receives only what an answer needs, under contracts that forbid the AI Providers to train on it; features that learn within an organization stay within it and are off until an Administrator turns them on; usage measurements only with the person's consent.
- Data portability and deletion: export of an organization's data at any time; deletion after the exit period (section 14).
- People: confidentiality obligations of all staff and contractors, access on a need-to-know basis, and security and privacy training.
- Sub-processors: chosen for their security, bound by written data protection terms, and reviewed when they

change (sections 7 and 8).

Annex III. Sub-processors

The Sub-processors of E1 Cloud when this version took effect, generated from E1 Cloud's configuration. The current list, with changes announced as in section 8, is at https://www.lanxtor.com/sub-processors.html.

- Microsoft Ireland Operations Ltd. (Microsoft Azure). Hosting: servers, PostgreSQL database, file storage, secrets, logs. Purpose: Runs E1 and stores its data. Personal data: All customer data: projects, drawings, files, accounts and their audit records. Where: Netherlands (EU).
- Microsoft Ireland Operations Ltd. (Microsoft Entra). Sign-in. Purpose: Signs people in. Personal data: Name, email address, sign-in records. Where: EU (the tenant's location).
- Microsoft Ireland Operations Ltd. (Azure OpenAI). The co-engineer's model. Purpose: Answers questions to Alex. Personal data: What a person asks Alex and the project data the answer needs. Where: Sweden (EU).
- Microsoft Ireland Operations Ltd. (Microsoft Foundry, Claude by Anthropic). The co-engineer's premium model (Editor licenses). Purpose: Answers questions to Alex. Personal data: What a person asks Alex and the project data the answer needs. Where: Global: may be processed outside the EU.
- Microsoft Ireland Operations Ltd. (Azure Communication Services). Email. Purpose: Sends invitations and notices. Personal data: Email address, the message. Where: EU (the resource's data location).
- Stripe Payments Europe, Ltd.. Payments. Purpose: Takes card payments of invoices. Personal data: The payer's name, email address, billing address; card data stays with Stripe. Where: Ireland (EU) and United States.

Lanxtor's own Affiliates and staff, Lanxtor Inc. in the United States: support with E1 support access the Customer approves, and operation of E1 Cloud (section 12).